

COVER PAGE

IN THE COURT OF THE SESSIONS JUDGE, MORADABAD, (U.P.)

Session Trial No. 021 of 2026

State of Uttar Pradesh

V/S

Commander Deepak Mishra

U/S: 103 of BNS, 2023

P/S: Majhola, Moradabad (U.P.)

F.I.R. No. 019 of 2026

MOOT COURT EXERCISE

CRIMINAL TRIAL SIMULATION

Prepared for the Moot Court Exercise

LL.B. VI Semester

Session: 2023-2026

GROUP - A

Prepared by the Students of

K.G.K. (P.G.) College, Moradabad (U.P.)

Affiliated to

Mahatma Jyotiba Phule Rohilkhand University, Bareilly (U.P.)

Submitted To

Advocate Shri Ram Sharma Sir

Date of Submission

BRIEF OF CASE
PROVIDED CASE (CRIMINAL)

The present case is about the tragic death of Mr. Vikram Singh, allegedly caused by Commander Deepak Mishra, a naval officer. Deepak Mishra was living with his wife Kajal. Their marital life appeared normal until Kajal revealed to her husband that she had developed an illicit relationship with Vikram Singh. This disclosure caused great emotional disturbance to the accused.

According to the prosecution, on 10th of January at about 6:00 PM, after learning about the relationship between his wife and the deceased, the accused did not act immediately. Instead, he went to his ship, obtained a revolver, gave a false justification to his superior about the procurement of that weapon, loaded it and then travelled to the residence of Vikram Singh, where the sister and housekeeper of the deceased were also present in the house. The prosecution alleges that these actions demonstrate a chain and series of preparation and intention. Upon reaching the residence of the deceased the accused confronted Vikram and shot him dead with that revolver. Therefore, the prosecution claims that the act amounts to intentional murder punishable under Section 103 of the BNS, 2023.

The defense presents a different story. According to the defense, the accused went to Vikram Singh's residence only to question him about the future of his wife and family. He also had a conversation with his friend Commander Shaurya that he is mentally disturbed after learning about his wife's relationship and thinking to commit suicide. During their conversation, Vikram allegedly failed to provide a satisfactory answer which led to a heated argument between them. The defense claims that the argument suddenly escalated into a physical scuffle. During the struggle, the revolver allegedly fell to the ground and was fired accidentally causing the fatal injury to Vikram Singh. Thus, the defense argues that the incident occurred due to an accident and not with a deliberate intention to kill.

During the investigation, the police recovered the revolver used in the incident and the ballistic examination confirmed that the bullets fired matched with the weapon belonging to the accused. The accused later surrendered himself to the authorities and cooperated with the investigation.

Prepare the complete set of documents for the trial by developing the moot court presentation and various stages of the case in light of the relevant legal provisions and established judicial precedents from both the prosecution and defence sides.

LIST OF ALL MEMBERS AND THEIR ROLES

DECEASED: Mr. Vikram Singh

ACCUSED: Commander Deepak Mishra

PROSECUTION COUNSELS:

(1)- Adv. Alshan Husain Shah

(2)- Adv. Saba Khan

DEFENCE COUNSELS:

(1)- Adv. Sachchan Chauhan

(2)- Adv. Drashti Chaudhry

PROSECUTION WITNESSESS (PW):

PW (1): Mrs. Kajal Mishra (*Wife of Accused*)

PW (2): Sub-Inspector Avinash Kumar Dubey (*Investigation Officer*)

PW (3): Dr. Anjum Malik (*Forensic Ballistic Expert*)

PW (4): Ms. Mamta Singh (*Sister of Deceased*)

PW (5): Mr. Abhishek Yadav (*Housekeeper of Deceased*)

DEFENSE WITNESS (DW):

DW (1): Commander Shaurya Saxena (*Friend of accused*)

OTHERS:

Narrator: Mr. Sidhant Narang

Court Master: Mr. Priyank

STATE OF U.P. V. COMMANDER DEEPAK MISHRA (2026)

PROSECUTION		DEFENSE	
Counsel	Co-Counsel	Counsel	Co-Counsel
			
Adv. Alshan	Adv. Saba	Adv. Sachchan	Adv. Drashti
DECEASED		ACCUSED	
			
Vikram Singh		Commander Deepak	
PROSECUTION WITNESSES		DEFENSE WITNESS	
			
PW-1 Kajal	PW-2 SI Avinash	DW-1 Commander Shaurya	
(Wife of Accused)	(IO)	(Friend of Accused)	
		NARRATOR 	
PW-3 Dr. Anjum	PW-4 Mamta	Mr. Sidhant Narang	
(Ballistic Expert)	(Sister of Deceased)	COURT MASTER 	
		Mr. Priyank Chilkoti	
PW-5 Abhishek			
(Housekeeper of Deceased)			

LIST OF EVIDENCES / WITNESSES

PROSECUTION EVIDENCE

(1) TESTIMONIAL EVIDENCE

- **PW1:** Mrs. Kajal Mishra (*Wife of Accused*)
- **PW2:** S.I. Avinash Kumar Dubey (*Investigating Officer*)
- **PW3:** Dr. Anjum Malik (*Forensic Ballistic Expert*)
- **PW4:** Ms. Mamta Singh (*Sister of Deceased*)
- **PW5:** Mr. Abhishek Yadav (*Housekeeper of Deceased*)

(2) DOCUMENTARY EVIDENCE

- Inquest Report (*Panchnama*)
- First Information Report (*F.I.R.*)
- Postmortem Report
- Pictures of Place of Crime
- Crime Scene Map
- Forensic Ballistic Examination Report
- Charge Sheet

(3) MATERIAL EVIDENCE

- Licensed Revolver
- Fired Bullet Shells

DEFENCE EVIDENCE

TESTIMONIAL EVIDENCE

- **DW1:** Commander Shaurya Saxena (*Friend of accused*)

LIST OF ABBREVIATION

S.No.	ABBREVIATION	ACTUAL TERM
1.	B.N.S.	<i>The Bharatiya Nyaya Sanhita, 2023</i>
2.	B.N.S.S.	<i>The Bharatiya Nagarik Suraksha Sanhita, 2023</i>
3.	B.S.A.	<i>The Bharatiya Sakshya Adhinyam, 2023</i>
4.	F.I.R.	<i>First Information Report</i>
5.	SC	<i>Hon’ble Supreme Court of India</i>
6.	V.	<i>Versus</i>
7.	Sec.	<i>Section</i>
8.	Para.	<i>Paragraph</i>
9.	Ors.	<i>Others</i>
10.	&	<i>And</i>
11.	Hon’ble	<i>Honourable</i>

LIST OF DATES AND EVENTS

Date	Event
10 January 2026 (Morning)	The accused Deepak Mishra came to know about the relationship between his wife Kajal Mishra and the deceased Vikram Singh.
10 January 2026 (Evening)	The accused procured a revolver from his ship and proceeded to the residence of the deceased.
10 January 2026 (6:00 PM)	The accused reached the residence of the deceased. An argument took place between the accused and the deceased, followed by a gunshot incident.
10 January 2026 (Immediately after incident)	The deceased Vikram Singh sustained fatal firearm injuries and was taken for medical assistance and he died on the way.
10 January 2026 (8:00 PM)	FIR No. 019/2026 was registered at Police Station Majhola, Moradabad under Section 103 BNS, 2023 after the <i>tahrir</i> .
10 January 2026 (Night)	The accused Deepak Mishra voluntarily surrendered before the police authorities.
11 January 2026 (10:00 AM – 11:30 AM)	Postmortem examination of the deceased was conducted at District Hospital, Moradabad.
15 January 2026	Forensic ballistic examination report confirmed that the bullet matched the revolver of the accused.
25 January 2026	Bail application before CJM was filed.
05 February 2026	Bail application before Sessions was filed.
20 February 2026	Charge sheet was filed before the competent court against the accused and after that the trial begins.

INQUEST REPORT (PANCHNAMA)

(Under Section 194 BNSS, 2023)

Date: 10 January 2026

Time: 7:00 PM

Place of Inquest: H.No. 3, Near Raam Leela Ground, Police Station Majhola, District Moradabad (U.P.) - Residence of Vikram Singh.

I, Sub-Inspector Avinash Kumar Dubey, posted at Police Station Majhola, Moradabad upon receiving information regarding the death of Vikram Singh, reached the place of occurrence and conducted the inquest proceedings in the presence of respectable witnesses (panch witnesses).

DETAILS OF DECEASED

Name: Vikram Singh

Age: 35 Years

Gender: Male

Address: H.No. 3, Near Raam Leela Ground, Majhola, Moradabad (U.P.)

CONDITION OF DEAD BODY

The dead body of Vikram Singh was found lying in the bedroom of the deceased near the bathroom.

The body was in a supine position and was wearing white towel stained with blood.

Firearm injuries were observed on the chest region of the deceased. Blood was present around the wound.

No other external injury of a suspicious nature was immediately visible.

APPARENT CAUSE OF DEATH

From the condition of the body and surrounding circumstances, it appears that the death has occurred due to firearm injury.

However, the exact cause of death shall be confirmed after postmortem examination.

ARTICLES FOUND AT THE SCENE

1. One revolver suspected to be used in the commission of offence
2. Three Fired Bullet Shells

All articles were seized and taken into police custody.

STATEMENTS OF PANCH WITNESSES

The panch witnesses present at the spot have inspected the dead body and the place of occurrence and have stated that the inquest has been conducted in their presence.

OPINION

Based on the preliminary examination it appears that the death of Vikram Singh is suspicious and has occurred under circumstances indicating commission of an offence.

Therefore, the dead body is being sent for postmortem examination for determination of the exact cause of death.

SIGNATURES OF THE PANCH WITNESSES:

- 1.
- 2.
- 3.
- 4.
- 5.

Dated: 10 January 2026

SIGNATURE

Investigating Officer
SI Avinash Kumar Dubey
Police Station Majhola, Moradabad

To,

The Station House Officer (SHO),

Police Station Majhola,

Moradabad, (U.P.) PIN - 244001

Concerned Police Station: Majhola, Moradabad (U.P.)

Subject: Application under Section 173 of the Bharatiya Nagarik Suraksha Sanhita, 2023 to register an FIR regarding the murder of Mr. Vikram Singh by Commander Deepak Mishra.

Respected Sir,

I would like to request that on 10 January 2026 at about 6:00 PM, the accused Commander Deepak Mishra came to the residence of my brother Vikram Singh located at H.No. 3, Near Raamleela Ground, Police Station Majhola, District Moradabad (U.P.). There had been prior tension between the accused and the deceased due to the alleged relationship between the accused's wife Kajal Mishra and my deceased brother Vikram Singh. On the said evening, the accused confronted my brother inside the house and an argument took place between them. Shortly thereafter, I heard a few loud gunshots coming from inside the bedroom of my brother. When I rushed towards the room, I found my brother Vikram Singh lying on the floor with gunshot injuries. The accused Deepak Mishra had fired a revolver which caused the fatal injuries to my brother. My brother was immediately taken for medical help, but he died on the way to the hospital.

Therefore, I request that please register an FIR and take strict legal action against the accused Commander Deepak Mishra for committing the murder of my brother Vikram Singh.

Dated: 10/01/2026

Applicant

Mamta Singh

Daughter of Rajesh Singh

Resident of H. No. 3, Near Ramlila Ground,

Police Station Majhola, District Moradabad (U.P.)

Mobile No.: 91-7017544521

FIRST INFORMATION REPORT**(Under Section 173 B.N.S.S.)****1. District/Unit:** Moradabad**P.S.** Majhola**Year:** 2026**F.I.R. No.** 019**Date and Time of FIR:** 10/01/2026 20:00 HRS**2.**

S.No.	Act(s)	Section(s)
1	Bharatiya Nyaya Sanhita, 2023	103

3. (a) Occurrence of Offence:**Day:** Saturday**Date from:** 10/01/2026**Date To:** 10/01/2026**Time Period:** Evening**Time From:** 18:00**Time To:** 18:00**(b) Information Received at P.S. Date:** 10/01/2026**Time:** 20:00**(c) General Diary Reference: Entry No.** 042**4. Type of Information:** Written**5. Place of Occurrence:****(a) Direction and distance from P.S.** South 5 K.M.**Beat No.****(b) Address:** H.No. 3, Near Raamleela Ground, Police Station Majhola, District Moradabad**(c) In case, outside the limit of this Police Station, then Name of P.S.****6. Complainant / Informant:****(a) Name:** Mamta Singh**(b) Father's Name:** Rajesh Singh

(c) **Date/Year of Birth:** 1995(d) **Nationality:** Indian(e) **UID No.** 4852 5621 7419(f) **Passport No.** U5214868**Date/Year of Issue:** 2017**Place of Issue:** Moradabad(g) **ID Details (Ration Card, Voter ID Card, Passport, UID No., Driving License, PAN**

S.No.	ID Type	ID Number
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(h) **Occupation:** Teacher(i) **Address:**

S.No.	Address Type	Address
1	Present Address	H.No. 3, Near Raamleela Ground, Police Station Majhola, District Moradabad
2	Permanent Address	H.No. 3, Near Raamleela Ground, Police Station Majhola, District Moradabad

(j) **Phone Number:****Mobile:** 91-7017544521**7. Details of Known / Suspected / Unknown accused with fill particulars:****Accused More Than One:** 0

S.No.	Name	Alias	Relative's Name	Present Address
1	Deepak Mishra	Commander Deepak Mishra	Father's Name: Mukesh Mishra	H.No. 10, Near Peeli Kothi, Civil Lines, Moradabad (U.P.) India

8. Reason for delay in reporting by the complainant / informant:

9. Particulars of properties of interest:

S.No.	Property Category	Property Type	Description	Value(In Rs/-)

10. Total value of property (In Rs/-):**11. Inquest Report / U.D. Case No., if any:**

S.No.	UIDB Number

12. First Information Contents:

To, Sir, Inspector in Charge, Police Station Majhola, Moradabad, Sir, I would like to request that on 10 January 2026 at about 6:00 PM, the accused Deepak Mishra came to the residence of my brother Vikram Singh located at H.No. 3, Near Raamleela Ground, Police Station Majhola, District Moradabad. There had been prior tension between the accused and the deceased due to the alleged relationship between the accused's wife Kajal Mishra and my deceased brother Vikram Singh. On the said evening, the accused confronted my brother inside the house and an argument took place between them. Shortly thereafter, I heard a few loud gunshots coming from inside the room. When I rushed towards the room, I found my brother Vikram Singh lying on the floor with gunshot injuries. The accused Deepak Mishra had fired a revolver which caused the fatal injury to my brother. My brother was immediately taken for medical help, but he died on the way to the hospital. Therefore, I request that please register an FIR and take strict legal action against the accused Deepak Mishra for committing the murder of my brother Vikram Singh. Signature of applicant, Mamta Singh, Daughter of Rajesh Singh, Resident of H.No. 3, Near Raamleela Ground, Police Station Majhola, District Moradabad, Mobile No. 91-7017544521, Dated: 10/01/2026 Note: I Head Constable 615 Deepak Kumar certify that the copy of the complaint has been typed word for word on the CCTNS portal by me. The original application is enclosed in the Hon'ble Court FIR.

13. Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2.**(1) Registered the case and took up the investigation / or****(2) Director (Name of I.O.) AVINASH KUMAR DUBEY****Rank: Sub-Inspector**

No. 163211548

to take up the Investigation or

(3) Refused investigation due to: _____ or _____
 (4) Transferred to P.S. _____ District: _____

On point of jurisdiction.

F.I.R. read over to the complainant / informant, admitted to be correctly recorded and a copy given to the complainant /informant, free of cost.

R.O.A.C.

Signature of Officer in charge, Police Station

Name: POLICE
STATION MAJHOLA

Rank: I (Inspector)

No. 9452215632

14. Signature / Thumb impression of the complainant / informant

15. Date and time of dispatch to the court:

Attachment to item 7 of First Information Report:

Physical features, deformities and other details of the suspect / accused: (If known / seen)

S.No.	Sex	Date/Year of Birth	Build	Height (cms)	Complexion	Identification Mark(s)
1	2	3	4	5	6	7
1	Male	1990	-	-	-	Smallpox: No

Deformities / Peculiarities	Teeth	Hair	Eye	Habit(s)	Dress Habit
8	9	10	11	12	13

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

NOTICE UNDER SECTION 35 BNSS, 2023

Police Station: Majhola, Moradabad (U.P.)

FIR No. 019/2026

Section: 103, Bharatiya Nyaya Sanhita, 2023

NOTICE OF APPEARANCE

To,

Commander Deepak Mishra,

Son of Mukesh Mishra, Resident of H.No.10, Near Peeli Kothi, Civil Lines, Moradabad U.P.)

Whereas it appears that you have committed a cognizable offence punishable under Section 103 of the Bharatiya Nyaya Sanhita, 2023, in connection with **FIR No. 019/2026** registered at Police Station **Majhola, Moradabad (U.P.)**

You are hereby directed to appear before the undersigned at Police Station Majhola, Moradabad on **11 January 2026 at 10:00 AM** for the purpose of investigation of the said case.

You are required to comply with the following directions:

1. You shall appear before the Investigating Officer as directed.
2. You shall not tamper with evidence or influence any witness.
3. You shall cooperate with the investigation at all times.

In case of failure to comply with this notice, necessary legal action may be taken against you as per law.

Dated: 10 January 2026

Issued by:

Sub-Inspector Avinash Kumar Dubey

Investigating Officer

Police Station Majhola, Moradabad (U.P.)

ARREST MEMO UNDER SECTION 36 BNSS, 2023

Police Station: Majhola, Moradabad FIR No.: 019/2026 Offence: Section 103 Bharatiya Nyaya Sanhita, 2023
Date of Arrest: 10 January 2026 Time of Arrest: 10:30 PM Place of Arrest: Police Station Majhola, Moradabad

DETAILS OF ACCUSED

Name: Commander Deepak Mishra
Father's Name: Mr. Mukesh Mishra
Address: H.No.10, Near Peeli Kothi, Civil Lines, Moradabad (U.P.)
Occupation: Naval Officer

MODE OF ARREST

The accused Deepak Mishra voluntarily appeared and surrendered himself before the police at Police Station Majhola, Moradabad.

Upon his surrender and after due inquiry, he was formally taken into custody in connection with the present case.

GROUND'S OF ARREST

The accused is arrested in connection with FIR No. 019/2026 registered under Section 103 of the Bharatiya Nyaya Sanhita, 2023, for the offence of murder of Vikram Singh.

INFORMATION TO ACCUSED

The accused has been informed of the grounds of arrest.
The accused has also been informed of his right to inform a relative or friend about his arrest.

INTIMATION

The accused has informed the following person about his arrest:

Name: Commander Shaurya Saxena (Friend of Accused)

Signature:

CONDITION OF ACCUSED

At the time of arrest, the accused was found to be in normal physical condition and showed no visible injuries.

Signature of Accused
(Commander Deepak Mishra)

Signature of Arresting Officer
(Sub-Inspector Avinash Kumar Dubey)

GOVERNMENT OF UTTAR PRADESH
HEALTH & FAMILY WELFARE DEPARTMENT

POSTMORTEM REPORT

P.M. No.: 153 / 2026 **Date:** 11 / January / 2026

Ref: _____

1. DETAILS OF THE DECEASED / CASE:

(a) Name: Vikram Singh

(b) S/o/D/o/W/o: Rajesh Singh

(c) Age: 35 Years **(d) Sex:** Male **(e) Address:** Majhola, Moradabad, Uttar Pradesh

(f) Brought by:

(i) Police: SI Avinash Kumar Dubey (Investigating Officer)

(ii) Others: a) Mamta Singh (Sister of the deceased)

b) _____

(g) Identified by:

(i) Police: _____

(ii) Others: a) Mamta Singh (Sister)

b) Abhishek Yadav (Housekeeper)

(h) Date & Time of receipt of dead body and papers: 11 January 2026 – 09:30 AM

(i) Date & Time of commencement of P.M. Examination: 11 January 2026 – 10:00 AM

(j) Date & Time of completion of P.M. Examination: 11 January 2026 – 11:30 AM

(k) Place of Examination: District Hospital Mortuary, Moradabad

2. RELEVANT INFORMATION AS FURNISHED BY POLICE:

As per the police report, the deceased Vikram Singh sustained firearm injuries on 10 January 2026 at approximately 6:00 PM at his residence in Majhola, Moradabad during an altercation with the accused Commander Deepak Mishra

3. EXTERNAL EXAMINATION:

(a) Length: 175 cm (b) Weight: 70 kg (c) Physique: Medium

(d) Nutrition: Normal

(e) Identification marks: Small mole on right cheek

(f) Wearing apparels: Towel stained with blood

(g) Postmortem changes and other appearances: Rigor mortis present in upper and lower limbs. No decomposition observed

(h) External Injuries: Three firearm entries wound measuring approximately 1.5 cm in diameter present on the left side of chest. Margins inverted with surrounding blackening and tattooing. Three corresponding exit wounds measuring approximately 2 cm present on the back side of chest

4. INTERNAL EXAMINATION: A. Head, Neck and Spinal Column

(a) Scalp: NAD (No abnormality detected)

(b) Skull: NAD

(c) Brain: NAD

(d) Mouth, Tongue, Pharynx, Larynx: NAD

B. Thorax

(a) Walls, Ribs and Cartilage: Intact

(b) Trachea and Bronchi: Normal

(c) Pleura and cavities: Blood present

(d) Right Lung: Lacerated due to bullet track

(e) Left Lung: Congested

(f) Heart: Chambers empty

(g) Large vessels: Severely damaged due to bullet injuries

C. Abdomen and Pelvic Region

(a) Stomach and contents: Semi-digested food present

(b) Small intestine: Normal

(c) Large intestine: Normal

(d) Liver and gall bladder: Preserved

(e) Pancreas: Preserved

(f) Spleen: Preserved

(g) Kidneys: Congested

5. SPECIMENS PRESERVED AND HANDED OVER TO INVESTIGATING OFFICER:

(a) Blood sample

(b) Clothing of the deceased

(c) Bullet fragments recovered during examination

(d) Spleen

(e) Sample of Blood

(f) Sample of Urine

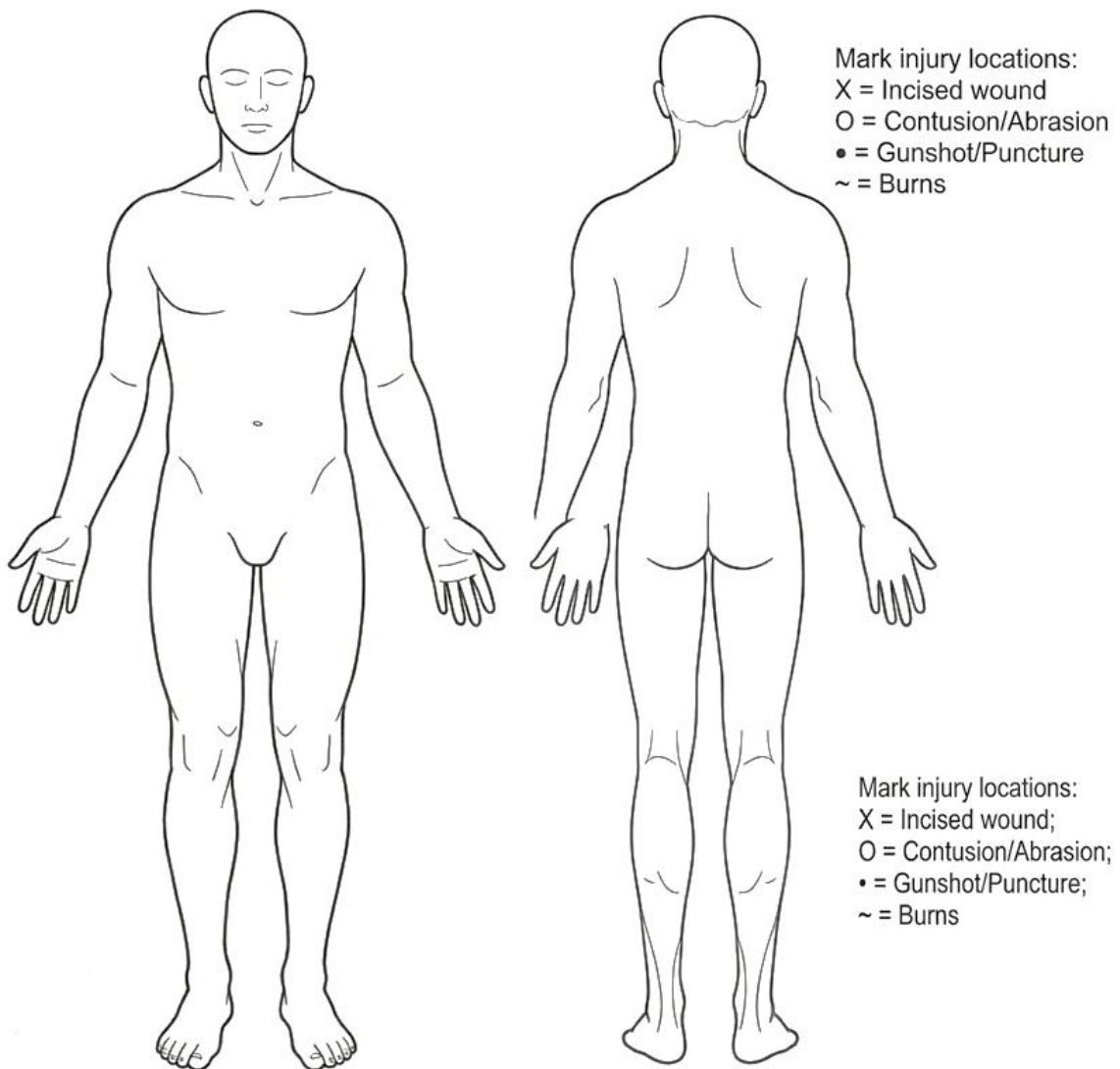
(g) Preservative used: Saturated solution of Sodium Chloride / Rectified Spirit

(h) Any Other: _____

6. SPECIMENS SENT FOR HISTOPATHOLOGY:

(a) Brain (b) Heart (c) Lungs (d) Liver (e) Spleen (f) Stomach (g) Intestine (h) Kidney

(i) Any other: _____



7. OPINION OF THE MEDICAL OFFICER AS TO THE CAUSE OF DEATH:

The deceased died due to shock and haemorrhage resulting from firearm injuries to the chest, which caused severe damage to vital organs including the lungs and major blood vessels.

- (a) **Time since death:** Approximately 12–18 hours prior to postmortem examination, consistent with the alleged time of incident
- (b) **Whether Injuries were antemortem or postmortem:** The injuries were ante-mortem in nature and sufficient in the ordinary course of nature to cause death

Place: Moradabad

Signature of M.O.

Date: 11/01/2026

Full Name: Dr. Deepika Prajapati

Designation: Senior Surgeon

SUBSEQUENT OPINION (IF ANY):

**THE HON'BLE COURT OF CHIEF JUDICIAL MAGISTRATE,
MORADABAD (U.P.)**

Remand Application For Police Custody

Sir,

In Case of FIR / Crime No. **019/2026**, the accused **Commander Deepak Mishra** has been arrested under **Section 103 Bharatiya Nyaya Sanhita, 2023** for the murder of Vikram Singh. During investigation it was found that the accused shot the deceased with a revolver after learning about the relationship between his wife and the deceased.

The investigation cannot be completed within 24 hours. Therefore, it is necessary to interrogate the accused and recover evidence related to the offence.

Hence, it is requested that the accused Deepak Mishra be sent to police custody for **10 days**.

Date: 11/01/2026

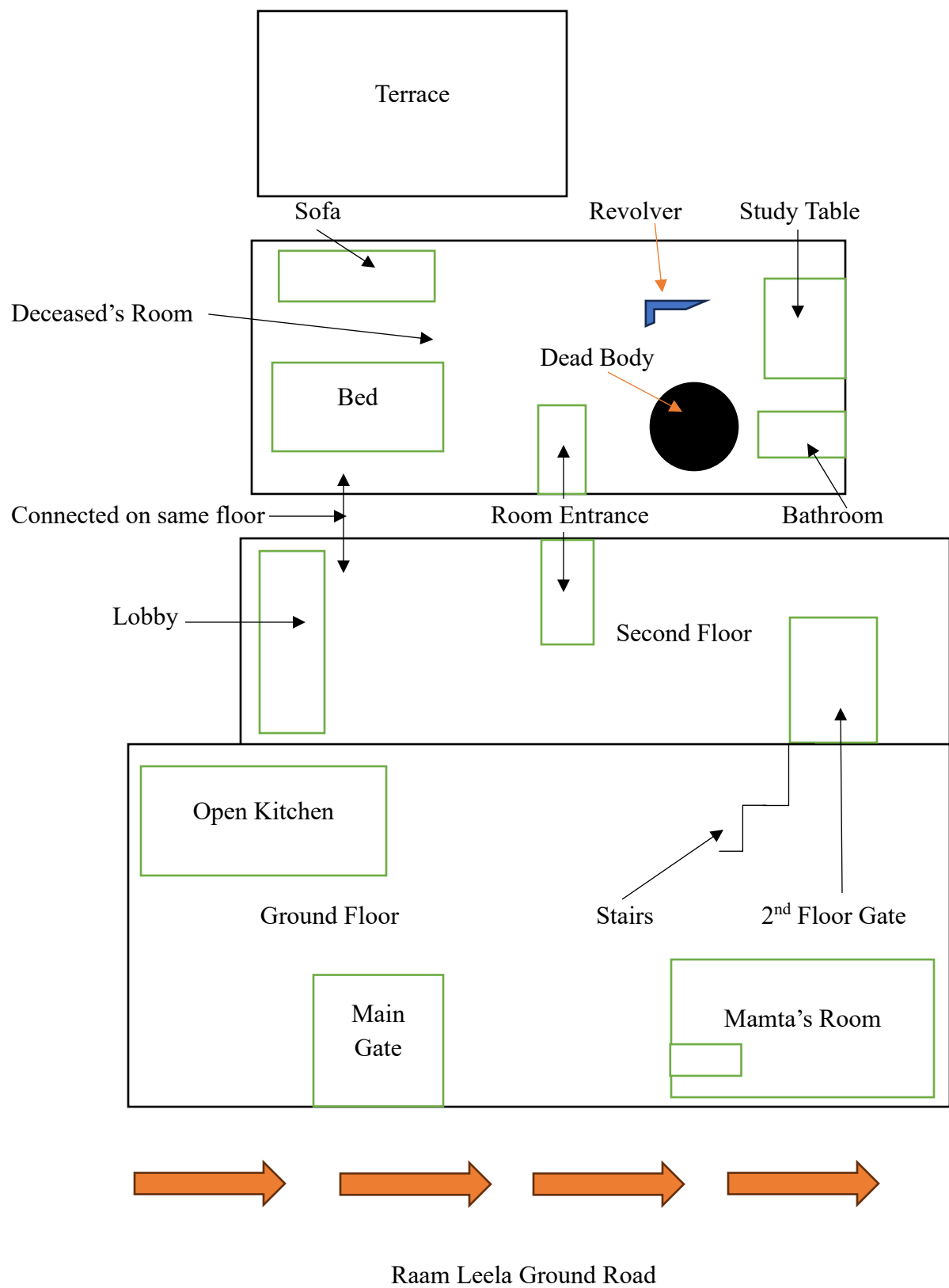
Investigation Officer
(Police Station Majhola, Moradabad)

PICTURES OF PLACE OF CRIME

“Photograph of the crime scene to be pasted here”

CRIME SCENE MAP
(Complete Details of Vikram's Dead Body and House)

Vikram Singh's Residence. H.No.3, Near Raam Leela Ground, Moradabad



Signature of the I.O. at the time of Investigation
Name: POLICE STATION MAJHOLA
Rank: Sub-Inspector
No. 9775241865



FORENSIC BALLISTIC EXAMINATION REPORT

**Forensic Science Laboratory
Uttar Pradesh Police
Moradabad, Uttar Pradesh**



Report No. FSL/BAL/2026/405

Date: 15 January 2026

Reference FIR No. 019 / 2026

Police Station: Majhola, Moradabad

Section(s): 103 BNS, 2023

Investigating Officer: SI Avinash Dubey

1. ARTICLES RECEIVED FOR EXAMINATION:

The following articles were received in sealed condition from Majhola Police Station, Moradabad for ballistic examination:

Article 1: One licensed revolver allegedly used in the commission of offence.

Article 2: Three bullets recovered from the body of the deceased during postmortem examination.

Article 3: Three fired bullet shells recovered from the place of occurrence.

2. CONDITION OF SEALS:

The seals on the parcels were found intact and were opened in the laboratory for examination.

3. EXAMINATION CONDUCTED:

- The revolver was examined to determine its working condition and capability of firing ammunition.
- The bullets recovered from the body and the cartridge cases recovered from the place of occurrence were examined using comparison microscope and other standard ballistic examination techniques.
- Test firing of the revolver was conducted in a controlled environment for comparison purposes.

4. OBSERVATIONS:

- The revolver submitted for examination was found to be in **working condition** and capable of firing ammunition.
- The bullets recovered from the body of the deceased exhibited rifling marks consistent with those produced by the barrel of the submitted revolver.
- The cartridge cases recovered from the crime scene also bore firing pin impressions consistent with the firing mechanism of the same revolver.

5. RESULT OF EXAMINATION:

Upon comparison of the test-fired bullets with the bullets recovered from the body of the deceased, it was found that the markings correspond.

6. OPINION:

In my expert opinion, the bullets recovered from the body of the deceased **were fired from the revolver submitted for examination.**

7. CONCLUSION:

The firearm submitted as Article 1 is the weapon from which the bullets recovered from the body of the deceased were fired.

Dated: 15 January 2026

Signature

Name: Dr. Anjum Malik

Designation: Senior Ballistic Expert
Forensic Science Laboratory
Uttar Pradesh Police

STATEMENT OF WITNESS UNDER SECTION 180 BNSS, 2023

(PW-1: Kajal Mishra)

Statement of Kajal Mishra, wife of accused Deepak Mishra, resident of Moradabad, recorded by the Investigating Officer during the course of investigation.

I am Kajal Mishra, wife of Commander Deepak Mishra and a resident of H.No. 10, Near Peeli Kothi, Police Station Civil Lines, District Moradabad (U.P.). I was residing with my husband prior to the incident.

I state that I had developed a personal and emotional relationship with Vikram Singh. After some time, I disclosed this fact to my husband. Upon learning about this, my husband became extremely upset and emotionally disturbed. He appeared shocked and deeply affected by the situation.

I further state that after I disclosed this information, my husband did not immediately leave the house. He remained at home for some time, during which he appeared to be thinking and emotionally distressed.

After some time, he left the house. Later, I came to know that he had gone to his ship and procured a revolver before going to meet Vikram Singh.

I state that my husband was under severe emotional stress due to the circumstances. Prior to this incident, he had never shown any violent behaviour and was a responsible husband and father.

This is my true statement.

Recorded by:
Investigating Officer

Signature
Kajal Mishra

STATEMENT OF WITNESS UNDER SECTION 180 BNSS, 2023

(PW-2: Investigating Officer - SI Avinash Kumar Dubey)

Statement of Sub-Inspector Avinash Kumar Dubey, Investigating Officer of the present case, recorded during the course of investigation.

I am Sub-Inspector Avinash Kumar Dubey, posted at Majhola Police Station, Moradabad. I was assigned the investigation of FIR No. 019/2026 registered under Section 103 of the Bharatiya Nyaya Sanhita, 2023.

Upon receiving information regarding the incident, I immediately proceeded to the place of occurrence, which is the residence of Vikram Singh. I inspected the crime scene and observed that the deceased had sustained firearm injuries.

During the course of investigation, I recovered the revolver allegedly used in the commission of the offence. I also conducted necessary inquest proceedings and ensured that the dead body was sent for postmortem examination.

The postmortem was conducted on 11 January 2026 and as per the report, the cause of death was shock and haemorrhage resulting from firearm injuries to the chest.

I further state that the recovered firearm, along with other relevant materials was sent for forensic ballistic examination. As per the report dated 15 January 2026, the bullet recovered from the body of the deceased matched the revolver recovered in the case.

I also state that the accused Deepak Mishra surrendered himself before the police on the night of 10 January 2026 and cooperated fully during the course of investigation.

This is my own and true statement.

Recorded by:
Investigating Officer

Signature
SI Avinash Kumar Dubey

STATEMENT OF WITNESS UNDER SECTION 180 BNSS, 2023

(PW-3: Ballistic Expert - Dr. Anjum Malik)

Statement of Dr. Anjum Malik, Forensic Ballistic Expert, recorded during the course of investigation.

I am Dr. Anjum Malik and I am working as a forensic ballistic expert. I was requested to examine the firearm and related materials in connection with the present case.

I received the revolver allegedly used in the commission of the offence, along with the bullet recovered from the body of the deceased and cartridge cases, in sealed condition for examination.

Upon examination, I found that the revolver was in proper working condition and capable of firing. I conducted a detailed ballistic examination using standard scientific methods.

I compared the test-fired bullets from the revolver with the bullet recovered from the body of the deceased. Upon comparison, I found that the markings on the bullet matched with the barrel of the revolver submitted for examination.

Based on my examination, I concluded that the bullet recovered from the body of the deceased was fired from the same revolver.

My opinion is based purely on scientific examination conducted in the laboratory.

This is my true statement.

Recorded by:
Investigating Officer

Signature
Dr. Anjum Malik

STATEMENT OF WITNESS UNDER SECTION 180 BNSS, 2023

(PW-4: Mamta Singh)

Statement of Mamta Singh, sister of the deceased Vikram Singh, resident of Moradabad, recorded by the Investigating Officer.

I am Mamta Singh, daughter of Rajesh Singh and a resident of H.No. 3, Near Raam Leela Ground, Police Station Majhola, District Moradabad (U.P.).

On 10 January 2026, at about 6:00 PM, I was present at my brother's house. During that time, I observed that someone is at the door and later I got to know from our housekeeper that Commander Deepak Mishra came to our house.

After he entered the house, I heard a loud argument between him and my brother Vikram Singh. The argument appeared serious and continued for some time.

Shortly thereafter, I heard gunshots coming from inside the house. On hearing the gunshots, I immediately rushed towards the room.

When I reached there, I saw that my brother had sustained serious injuries. From the circumstances, I came to know that Deepak Mishra had fired at my brother.

Due to the gunshot injuries, my brother later died.

This is my true statement.

Recorded by:
Investigating Officer

Signature
Mamta Singh

STATEMENT OF WITNESS UNDER SECTION 180 BNSS, 2023

(PW-5: Abhishek Yadav)

Statement of Abhishek, housekeeper at the residence of the deceased Vikram Singh, recorded by the Investigating Officer.

I am Abhishek and I was working as a housekeeper at the residence of Vikram Singh.

On 10 January 2026, I was present at the house at the time of the incident. In the evening, I saw Deepak Mishra entering the house of Vikram Singh.

After some time, I heard a loud argument between Commander Deepak Mishra and Vikram Singh from inside the house. The argument sounded intense.

Shortly thereafter, I heard gunshots coming from inside the bedroom of Vikram Singh.

I did not enter the room at that moment, but after some time I came to know that Vikram Singh had sustained gunshot injuries.

I also noticed that after the incident, the accused' appeared to be in a state of shock and left the house and ran away immediately.

This is my statement.

Recorded by:
Investigating Officer

Signature
Abhishek Yadav

(Accused In Judicial Custody)

**IN THE HON'BLE COURT OF THE CHIEF JUDICIAL MAGISTRATE,
MORADABAD, UTTAR PRADESH**

Bail Application No. of 2026

State of Uttar Pradesh

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad U.P.)

Crime / FIR No. 019 of 2026

**APPLICATION FOR GRANT OF BAIL UNDER SECTION 480 OF THE BHARATIYA
NAGARIK SURAKSHA SANHITA, 2023**

Hon'ble Sir,

It is Most Respectfully Submitted as under:

1. That the present FIR No. 019/2026 has been registered against the applicant under Section 103 of the Bharatiya Nyaya Sanhita, 2023 at Police Station Majhola, Moradabad.
2. That the applicant is innocent and has been falsely implicated in the present case due to circumstances arising out of a personal dispute.
3. That the applicant is a law-abiding citizen and a serving Naval Officer, holding a respectable position in society, and has no criminal antecedents.
4. That the applicant voluntarily surrendered before the police authorities immediately after the alleged incident, which clearly shows his Bonafide conduct and absence of any intention to abscond.
5. That there are no direct eyewitnesses to the alleged occurrence and the entire case of the prosecution is based on circumstantial evidence.
6. That the incident took place accidentally in the course of a sudden confrontation between the accused and the deceased and there was no pre-planned or premeditated intention to commit the alleged offence.
7. That the facts and circumstances of the case clearly indicate that the matter fall within the ambit of an accident, attracting exception to the offence of murder.

8. That the investigation in the present case is substantially complete and all material evidence including the alleged weapon has already been recovered, therefore no custodial interrogation of the applicant is required.
9. That the applicant is a permanent resident of Moradabad and there is no likelihood of his absconding or tampering with prosecution evidence.
10. That continued detention of the applicant would cause irreparable harm to his reputation, career and family life.
11. That the applicant undertakes to fully cooperate with the trial and abide by any condition imposed by this Hon'ble Court.

PRAYER

It is therefore most respectfully prayed that in view of the above facts and circumstances this Hon'ble Court may kindly be pleased to **Grant bail to the applicant Commander Deepak Mishra** in the FIR No. 019 / 2026, in the best interest of justice.

Dated: 25/01/2026

Applicant

Commander Deepak Mishra

Through Counsel.

(Accused)

(Counsel for Accused)

(Accused In Judicial Custody)

**IN THE HON'BLE COURT OF THE SESSIONS JUDGE,
MORADABAD, UTTAR PRADESH**

Criminal Misc. Bail Application No. of 2026

State of Uttar Pradesh

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad U.P.)

Crime / FIR No. 019 of 2026

**APPLICATION FOR GRANT OF BAIL UNDER SECTION 483 OF THE BHARATIYA
NAGARIK SURAKSHA SANHITA, 2023**

Hon'ble Sir,

It is Most Respectfully Submitted as under:

1. That the applicant is seeking bail before this Hon'ble Court after rejection of bail by the Learned Chief Judicial Magistrate, Moradabad.
2. That the applicant is innocent and has been falsely implicated in the present case.
3. That the applicant is a serving Naval Officer with an unblemished record and has strong roots in society.
4. That the applicant voluntarily surrendered before the police and has cooperated throughout the investigation.
5. That the prosecution case is based entirely on circumstantial evidence and there is no direct eyewitness to the alleged incident.
6. That the material on record clearly indicates that the incident occurred due to an accident arising out of personal and emotional circumstances.
7. That the applicant was under severe mental stress and emotional disturbance at the time of the incident, which is evident from the statements of witnesses and surrounding circumstances.
8. That there was no intention, knowledge, or premeditation on the part of the applicant to cause the death of the deceased, and the incident is purely accidental in nature.

9. That the applicant has already been in judicial custody and no further recovery or investigation is pending.
10. That there is no likelihood of the applicant fleeing from justice or tampering with evidence or influencing witnesses.
11. That the trial of the case is likely to take considerable time and continued incarceration of the applicant would amount to pre-trial punishment.
12. That the applicant undertakes to appear before the Court on every date and comply with all conditions imposed by this Hon'ble Court.

PRAYER

It is therefore most respectfully prayed that in view of the above facts and circumstances this Hon'ble Court may kindly be pleased to **Grant bail to the applicant Commander Deepak Mishra** in the FIR No. 019/2026, in the best interest of justice.

Dated: 05/02/2026

Applicant

Commander Deepak Mishra

Through Counsel.

(Accused)

(Counsel for Accused)

**IN THE HON'BLE COURT OF THE CHIEF JUDICIAL MAGISTRATE,
MORADABAD, UTTAR PRADESH**

State of Uttar Pradesh

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad U.P.)

Crime / FIR No. 019 of 2026

**AFFIDAVIT IN SUPPORT OF BAIL APPLICATION BEFORE THE CHIEF JUDICIAL
MAGISTRATE**

I, **Commander Shaurya Saxena**, aged about 40 years, resident of Moradabad (U.P.), presently serving as Naval Officer in The Indian Navy, do hereby solemnly affirm and state as under:

1. That I am a close friend and well-wisher of the accused, Commander Deepak Mishra, and I am fully acquainted with the facts and circumstances of the present case.
2. That I have read and understood the contents of the accompanying bail application filed on behalf of the accused and I state that the same are true and correct to my knowledge and belief.
3. That the accused is a law-abiding and disciplined officer with an unblemished service record and has no criminal antecedents.
4. That the accused voluntarily surrendered before the authorities after the alleged incident, which clearly reflects his bona fide conduct.
5. That the accused is a permanent resident and has deep roots in society, and there is no likelihood of his absconding or tampering with evidence.
6. That the investigation in the present case is substantially complete and no custodial interrogation of the accused is required.
7. That the accused undertakes to cooperate fully with the investigation and trial proceedings and shall abide by any conditions imposed by this Hon'ble Court.
8. That the continued detention of the accused would cause irreparable harm to his reputation, career, and family life.

VERIFICATION

I, the above-named deponent, do hereby verify that the contents of this affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therefrom. Verified at District Court, Moradabad, Uttar Pradesh on this 25th day of January, 2026.

DEPONENT

(Commander Shaurya Saxena)

**IN THE HON'BLE COURT OF THE SESSIONS JUDGE,
MORADABAD, UTTAR PRADESH**

State of Uttar Pradesh

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad U.P.)

Crime / FIR No. 019 of 2026

AFFIDAVIT IN SUPPORT OF BAIL APPLICATION BEFORE THE SESSIONS JUDGE

I, **Commander Shaurya Saxena**, aged about 40 years, resident of Moradabad (U.P.), presently serving as Naval Officer in The Indian Navy, do hereby solemnly affirm and state as under:

1. That I am a close friend and well-wisher of the accused, Commander Deepak Mishra, and I am fully acquainted with the facts and circumstances of the present case.
2. That I have read and understood the contents of the accompanying bail application filed on behalf of the accused and I state that the same are true and correct to my knowledge and belief.
3. That the accused is a law-abiding and disciplined officer with an unblemished service record and has no criminal antecedents.
4. That the accused voluntarily surrendered before the authorities after the alleged incident, which clearly reflects his bona fide conduct.
5. That the accused is a permanent resident and has deep roots in society and there is no likelihood of his absconding or tampering with evidence.
6. That the investigation in the present case is substantially complete and no custodial interrogation of the accused is required.
7. That the accused undertakes to cooperate fully with the investigation and trial proceedings and shall abide by any conditions imposed by this Hon'ble Court.
8. That the continued detention of the accused would cause irreparable harm to his reputation, career and family life.

VERIFICATION

I, the above-named deponent, do hereby verify that the contents of this affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therefrom. Verified at District Court, Moradabad, Uttar Pradesh on this 5th day of February, 2026.

DEPONENT

(Commander Shaurya Saxena)

FINAL FORM / REPORT**(Under Section 193 B.N.S.S)****IN THE COURT OF: C.J.M. MORADABAD****1. District:** Moradabad**P.S.** Majhola**Year:** 2026**FIR No.** 019**Date:** 10/01/2026**2. Final Report / Charge Sheet No.** 01**3. Date:** 20/02/2026**4.**

S.No.	Act(s)	Section(s)
1	Bharatiya Nyaya Sanhita, 2023	103

5. Type of Final Form / Report: Charge Sheet**6. If FR Unoccurred:****7. If Charge Sheet:** Main**8. Name of I.O. at the time of charge sheet:** AVINASH KUMAR DUBEY**Rank:** SI (Sub-Inspector)**No.** 163211548**9. (a) Name of complainant/Informant:** Mamta Singh**(b) Father's Name:** Rajesh Singh

10. Details of Properties/Articles/Documents recovered/seized during investigation and relied upon

S.No.	Property Description	Estimated Value (in Rs.)	Police Station Property Register No.	From whom/where received or seized	Disposal
1	Licensed Revolver			Crime scene	Sent for ballistic examination
2	Fired Bullet Shells			Crime scene	Sent for ballistic examination

11. Particulars of accused persons charge-sheeted:
S.No. 01
(i) Name: Commander Deepak Mishra

Whether Verified: Yes

(ii) Father's Name: Mukesh Mishra

(iii) Date/Year of Birth: 1990

(iv) Sex: Male

(v) Nationality: Indian

(vi) Passport No. UI2144796

Date/Year of Issue: 2010

Place of Issue: Moradabad

(vii) Religion: Hindu

(viii) Whether SC/ST/OBC: General

(ix) Occupation: Naval Officer

(x) Address:

S.No.	Address Type	Address
1	Present Address	H.No.10, Near Peeli Kothi, Civil Lines, Moradabad (U.P.) India
2	Permanent Address	H.No.10, Near Peeli Kothi, Civil Lines, Moradabad (U.P.) India

Whether verified: Yes**Regular Criminal No. (If known):****(xi) Date of arrest:** 10/01/2026**(xii) Date of release on bail:****(xiii) Date on which forwarded to court:****(xiv) Under Acts & Sections :**

S.No.	Act(s)	Section(s)
1	Bharatiya Nyaya Sanhita, 2023	103

(xv) Details of bailers/ sureties :**Name:****Father's /Husband's Name:****Occupation:****Address:**

S.No.	Address Type	Address
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Identification : **Date of Birth:**
UID Number:**Any Other ID Proof:**

S.No.	ID Type	ID Number
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(xv) Previous convictions with case reference:**(xvi) Status of the accused:** In Judicial Custody**(xvii) Brief details of crime related with accused:****(xviii) Crime evidence related with accused:****12. Particulars of accused persons -not charge sheeted :****13. Particulars of witnesses to be examined:**

S.No.	Name	Father's /Husband's name	Date/Year of birth	Occupation	Address	Type of evidence to be tendered
1	Kajal Mishra	Deepak Mishra	1995	Housewife		Informal
2	SI Avinash Kumar Dubey	Mohan Kumar Dubey	1988	Investigating Officer		Formal
3	Dr. Anjum Malik	Aslam Malik	1985	Forensic Ballistic Expert		Formal
4	Mamta Singh	Rajesh Singh	1995	Teacher		Informal
5	Abhishek Yadav	Tarun Yadav	1998	Housekeeper		Informal

14. If FR is false(F.R. false), indicate action taken or proposed to be taken:

15. Result of Laboratory analysis:

16. Brief facts of the case:

Sir, on the basis of complaint given by the informant in the above case, it has been registered under section 103 of BNS v. Commander Deepak Mishra son of Mukesh Mishra resident of H.No.10, Near Peeli Kothi, Civil Lines, Moradabad (U.P.) India, regarding that on 10 January 2026 at about 6:00 PM, the accused Deepak Mishra visited the residence of the deceased Vikram Singh at H.No. 3, Near Raamleela Ground, Police Station Majhola, District Moradabad. There had been previous tension between the accused and the deceased due to the alleged relationship between the accused's wife Kajal Mishra and the deceased Vikram Singh. Upon reaching the residence of the deceased, the accused confronted Vikram Singh and an argument took place between them. During the course of the confrontation, the accused fired a revolver which caused fatal gunshot injuries to Vikram Singh. The injured Vikram Singh was taken for medical assistance but he succumbed to his injuries and died on the way to hospital. Later, the accused Deepak Mishra surrendered himself before the police after the written complaint from the informant was given to the police station. On the complaint of the informant Mamta Singh, FIR No. 019 / 2026 was registered at Majhola Police Station under Section 103 of the Bharatiya Nyaya Sanhita, 2023. During investigation, the crime scene was inspected, the weapon used in the offence was recovered, and the ballistic examination confirmed that the bullets recovered from the body of the deceased were fired from the revolver belonging to the accused. After completion of the investigation, sufficient evidence was found against the accused Deepak Mishra for committing the offence of murder and is challaned under section 103 of BNS. It is requested to the Hon'ble Court to summon the evidence and punish the accused with appropriate punishment.

17. Refer Notice served: No

Date:

(Acknowledgment to be placed):

18. Dispatched on: 20/02/2026

19. No. of enclosure:

20. List of enclosures:

21. Name and address of the accused, who have not been challenged, whether caught or not:

21(a) Suspected accused name, address and age:

21(b) The absconding accused name, address and age

22. Names and addresses of the accused, who have been challenged:

22(a) Name, address and age of the accused on bail:

22(b) Mafarur accused name, address and age:

23. Case property (including weapons) with details of where and when they were recovered and the details of recovering officer and also whether they were sent to the magistrate or not.:

24. Result of trial:

25. Complete Punishment:

25(a) Date:

25(b) Place:

25(c) Punishment:

Forwarded by officer in charge

Name: POLICE STATION MAJHOLA

Rank: I (Inspector)

No. 9452215632

**Signature of Investigating officer
submitting final report / charge sheet**

Name: AVINASH KUMAR DUBEY

Rank: SI (Sub-Inspector)

No. 9775241865

IN THE HON'BLE COURT OF SESSIONS, MORADABAD, (U.P.)

(Under Section 251 of the Bharatiya Nagarik Suraksha Sanhita, 2023)

Sessions Trial No. 021 of 2026

State of U.P.

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad (U.P.)

FIR / Crime No. 019 of 2026

CHARGE FRAMED BY THE COURT

I, The Sessions Judge, Moradabad, hereby charge you, the accused Commander Deepak Mishra, as follows:

First - That you, on 10 January 2026, at H.No. 3 Near Raam Leela Ground, Police Station Majhola, Moradabad, at about evening 6:00 P.M., did commit the murder of Vikram Singh by shooting him with a revolver at his residence and thereby caused his death, and you have thereby committed an offence punishable under Section 103 of the Bharatiya Nyaya Sanhita, 2023 which is within the jurisdiction of this Court.

Second - That you, in relation to the said incident, attempted to conceal the true facts during the investigation and thereby interfered with the course of justice.

And I hereby direct that you be tried by this Court on the said charges.

Dated:

Sessions Judge

Moradabad

IN THE HON'BLE COURT OF SESSIONS, MORADABAD, (U.P.)

Sessions Trial No. 021 of 2026

State of U.P.

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad (U.P.)

FIR / Crime No. 019 / 2026

Application To Initiate Evidence

Hon'ble Sir,

In Case of FIR/Crime No. **019/2026**, the accused Commander Deepak Mishra is being tried for the offence under **Section 103 of the Bharatiya Nyaya Sanhita, 2023** for the murder of Mr. Vikram Singh.

The investigation of the case has been completed and sufficient evidence has been collected against the accused. Therefore, the prosecution requests that the Hon'ble Court may kindly permit the **initiation of evidence and examination of witnesses** in this case.

Hence, it is prayed that the Court may allow the **prosecution to produce evidence and examine witnesses** in the best interest of justice.

Date:

Public Prosecutor

(Sessions Court, Moradabad)

OPENING STATEMENT (PROSECUTION)

May it please this Hon'ble Court,

The learned Public Prosecutor, on behalf of the State seeks permission to commence the proceedings in the present case against the accused, Commander Deepak Mishra.

This case pertains to the brutal and intentional killing of Vikram Singh which took place on 10 January 2026 at the residence of the deceased in Majhola, Moradabad.

The prosecution will establish that the accused upon learning about the relationship between his wife Kajal Mishra and the deceased Vikram Singh, became disturbed but instead of resolving the matter peacefully, he deliberately chose to take the law into his own hands.

The accused had sufficient time for reflection. He procured a revolver, loaded it and travelled to the residence of the deceased. Upon reaching there, an argument took place following which the accused intentionally fired at Vikram Singh, causing his death.

The police on the basis of material evidence and investigation, registered an FIR and conducted a thorough investigation. The postmortem report confirms that the death was caused due to firearm injuries and the ballistic report establishes that the bullet recovered from the body of the deceased was fired from the revolver possessed by the accused.

The prosecution shall, with the permission of this Hon'ble Court present its evidence in the form of witnesses including the wife of the accused, the Investigating Officer, the ballistic expert, the sister of the deceased and the housekeeper present at the scene.

Through these witnesses and documentary evidence the prosecution will prove beyond any reasonable doubt that the accused committed the offence of murder punishable under Section 103 of the Bharatiya Nyaya Sanhita, 2023.

That is all, Your Lordship. Much Obligated.

EXAMINATION-IN-CHIEF BY ADV. SABA (PROSECUTION)

PW-1 (KAJAL MISHRA)

(Under Section 142 of the Bharatiya Sakshya Adhiniyam, 2023)

Q1: Please state your name before this hon'ble court.

A: My name is Kajal.

Q2: Do you know the accused Commander Deepak Mishra?

A: Yes, he is my husband.

Q3: Did you disclose your relationship with the deceased Mr. Vikram Singh to your husband?

A: Yes. I did.

Q4: How did he react?

A: He was very upset about it.

Q5: Did he immediately leave to meet the deceased?

A: No. He did not leave immediately.

Q6: Do you know if he collected a revolver from his ship before meeting the deceased?

A: Yes, he took a revolver from his ship.

CROSS EXAMINATION BY ADV. DRASHTI (DEFENCE)

Q1: Mrs. Kajal, was your husband emotionally disturbed after hearing the truth?

A: Yes, he was deeply upset.

Q2: Would you say he was not in a stable mental state?

A: Yes.

Q3: Was he a devoted husband and father before this incident?

A: Yes. He was.

Q4: Do you believe that as a spouse you broke his trust?

A: Yes. I did.

Q5: Did he ever show violent behaviour before this incident?

A: No. Never.

Q6: Did the deceased promise to marry you if you leave your husband?

A: He said that he loved me and wanted to be with me but he never clearly promised for marriage.

EXAMINATION-IN-CHIEF BY ADV. ALSHAN (PROSECUTION)

PW-2 (INVESTIGATING OFFICER – AVINASH KUMAR DUBEY)

(Under Section 142 of the Bharatiya Sakshya Adhiniyam, 2023)

Q1: Could you please state your name and designation to this hon'ble court.

A: My name is Sub-Inspector Avinash Kumar Dubey and I am the Investigating Officer in this case.

Q2: What exactly did you find at the crime scene?

A: At the crime scene it was found that the deceased had bullet injuries and the accused's revolver was recovered.

Q3: When was the Postmortem of the deceased occurred?

A: The Postmortem of the deceased occurred on 11 January 2026.

Q4: What was the conclusion of the Postmortem report?

A: In the Postmortem report it was stated that the deceased died due to shock and haemorrhage resulting from firearm injuries to the chest, which caused severe damage to vital organs including the lungs and major blood vessels.

Q5: Was any sort of ballistic examination conducted?

A: Yes. It was conducted on 15 January 2026.

Q6: Could you please tell this hon'ble court what was the result of the ballistic examination?

A: In the examination, it was found that the bullets matched with the revolver of the accused.

Q7: Did the accused surrendered himself voluntarily?

A: Yes, he surrendered himself in the police station on the night of 10 January 2026.

CROSS EXAMINATION BY ADV. SACHCHAN (DEFENCE)

Q1: Could you please tell to the court that there were any eyewitnesses to the shooting?

A: No. Sir.

Q2: Did the accused attempt to flee?

A: No. He did not attempt to flee.

Q3: Is this correct to say that there was no one at the crime scene except the accused & the deceased?

A: Yes.

Q4: Have you found any other deadly weapon other than the revolver?

A: No

Q5: Did the accused cooperate with investigation?

A: Yes. He did.

Q6: Is this correct to say that you did not take the signature of Mrs. Kajal while recording her statement?

A: Yes, It is correct.

EXAMINATION-IN-CHIEF BY ADV. SABA (PROSECUTION)

PW-3 (BALLISTIC EXPERT – DR. ANJUM MALIK)

(Under Section 142 of the Bharatiya Sakshya Adhiniyam, 2023)

Q1: Please state your name and profession.

A: My name is Dr. Anjum Malik and I am a forensic ballistic expert.

Q2: Did you examine the revolver recovered in this case?

A: Yes. I did.

Q3: What did your examination reveal?

A: The bullets recovered from the body of the deceased were fired from that revolver.

Q4: Was the revolver in working condition?

A: Yes. It was.

Q5: In your expert opinion, could the revolver cause fatal injury if fired?

A: Yes.

CROSS EXAMINATION BY ADV. DRASHTI (DEFENCE)

Q1: Dr. Anjum, you were not present at the scene of the incident, correct?

A: Yes.

Q2: Your opinion is based only on laboratory examination?

A: Yes.

Q3: You cannot say exactly how the weapon was fired, can you?

A: No.

Q4: You cannot say whether the firing was intentional or accidental?

A: No.

EXAMINATION-IN-CHIEF BY ADV. ALSHAN (PROSECUTION)

PW-4 (MAMTA SINGH)

(Under Section 142 of the Bharatiya Sakshya Adhiniyam, 2023)

Q1: Please state your name before this Hon'ble Court.

A: My name is Mamta Singh.

Q2: What was your relation with the deceased Vikram Singh?

A: He was my brother.

Q3: Were you present at the house of the deceased on 10th of January 2026?

A: Yes.

Q4: Do you know that accused Deepak Mishra arrived at your brother's house that evening?

A: Yes, I know.

Q5: What did you observe in the house that evening?

A: I heard that there was an argument between my brother and the accused and after that I heard a few gunshots.

CROSS EXAMINATION BY ADV. SACHCHAN (DEFENCE)

Q1: Is this correct that you did not actually see the moment when the gun was fired?

A: Yes, I did not see the exact moment.

Q2: You were not inside the same room where the incident happened?

A: No. I was not there.

Q3: Therefore, you cannot say how exactly the revolver was fired?

A: No, I cannot say that.

Q4: You also cannot say whether the firing was accidental or intentional, correct?

A: Yes.

Q5: Your testimony is mainly based on what you heard and not what you directly saw?

A: Yes.

EXAMINATION-IN-CHIEF BY ADV. SABA (PROSECUTION)

PW-5 (ABHISHEK YADAV)

(Under Section 142 of the Bharatiya Sakshya Adhiniyam, 2023)

Q1: Please state your name and occupation before this Hon'ble Court.

A: My name is Abhishek and I worked as the housekeeper at Vikram Singh's residence.

Q2: Were you present at the house on the day of the incident?

A: Yes, I was present.

Q3: Did you see the accused Deepak Mishra coming to the house that evening?

A: Yes, I saw him entering the house.

Q4: Did you hear any conversation or argument between the accused and the deceased?

A: Yes, I heard them arguing loudly.

Q5: What happened shortly after that argument?

A: I heard a few loud gunshots from inside the bedroom of Mr. Vikram Singh.

CROSS EXAMINATION BY ADV. DRASHTI (DEFENCE)

Q1: You were not present inside the room where the shooting took place, correct?

A: Yes. That is correct.

Q2: Therefore, you did not actually see the gun being fired?

A: No. I did not see that.

Q3: You only heard the sound of the gunshots?

A: Yes.

Q4: You cannot say exactly what happened between the accused and the deceased inside the room, can you?

A: No. I cannot say that.

Q5: You also cannot say whether the firing was accidental or deliberate, correct?

A: Yes. That is correct.

Q6: Could you please tell to this court that what was the reaction of the accused after you heard the gunshots?

A: He was in a state of shock.

EXAMINATION-IN-CHIEF BY ADV. SACHCHAN (DEFENCE)

DW-1 (COMMANDER SHAURYA SAXENA)

(Under Section 142 of the Bharatiya Sakshya Adhiniyam, 2023)

Q1: Please state your name and profession before this Hon'ble Court.

A: My name is Commander Shaurya and I serve in the Indian Navy.

Q2: Do you know the accused Deepak Mishra?

A: Yes, he is my colleague and close friend.

Q3: Did the accused ever discuss his personal problems with you regarding his wife's relationship with the deceased?

A: Yes, he told me he was deeply disturbed after learning about it.

Q4: Did he tell you about his intentions before meeting the deceased?

A: Yes, he told me that he wanted to talk to the deceased about the future of his family and that he was even thinking about committing suicide.

CROSS EXAMINATION BY ADV. ALSHAN (PROSECUTION)

Q1: Is this correct that you were not present at the scene of the incident?

A: Yes. That is correct.

Q2: Whatever you know about the incident is only based on what the accused told you earlier?

A: Yes.

Q3: You cannot say what actually happened at the house of the deceased that evening, correct?

A: Yes. Correct.

Q4: Therefore, your testimony is only about the accused's mental state before the incident, correct?

A: Yes.

IN THE HON'BLE COURT OF SESSIONS, MORADABAD, (U.P.)

Sessions Trial No. 021 of 2026

State of U.P.

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad (U.P.)

FIR / Crime No. 019 / 2026

Application To Close Evidence

Hon'ble Sir,

It is most Respectfully Submitted That the above-mentioned case is pending before this Hon'ble Court and the prosecution has already examined all its listed witnesses.

That no further evidence remains to be adduced on behalf of the prosecution.

Therefore, it is most respectfully prayed that this Hon'ble Court may kindly be pleased to close the prosecution evidence in the present case.

Dated:

Public Prosecutor

(Sessions Court, Moradabad)

STATEMENT OF ACCUSED

(Under Section 351 BNSS, 2023)

Q1: Against you the: Prosecution Witness No. 1 – Kajal Mishra (Wife of Accused)
Prosecution Witness No. 2 – Investigating Officer
Prosecution Witness No. 3 – Forensic Ballistic Expert
Prosecution Witness No. 4 – Mamta Singh (Sister of Deceased)
Prosecution Witness No. 5 – Abhishek (Housekeeper of Deceased)

Have given their testimony and the documentary evidence presented by the prosecution including FIR, Inquest Report, Postmortem Report, Ballistic Report, Charge Sheet and other documents has been placed before you and has been relied upon against you for committing the murder of Mr. Vikram Singh. You are now being examined under Section 351 of the Bharatiya Nagarik Suraksha Sanhita, 2023. What do you have to say regarding this?

A: All the evidences advanced by the prosecution against me are false and fabricated. I am innocent against all such charges.

Q2: Is it correct that on 10 January 2026, you went to the residence of the deceased Vikram Singh?

A: Yes, I went to his house.

Q3: Is it correct that you were carrying a revolver with you at that time?

A: Yes, I had a revolver with me.

Q4: Is it correct that an argument took place between you and the deceased?

A: Yes, an argument took place between us.

Q5: The prosecution alleges that you intentionally fired at the deceased. What do you have to say?

A: This is not correct. I did not intentionally fire at him.

Q6: What exactly happened at the time of the incident?

A: During the argument a physical scuffle took place between us. The revolver fell down and both of us tried to grab it. During that struggle the revolver accidentally discharged.

Q7: Did you attempt to flee from the spot after the incident?

A: No, I did not try to flee.

Q8: Is it correct that you voluntarily surrendered before the police?

A: Yes, I surrendered myself before the police.

Q9: Do you want to say anything else in your defence?

A: I am innocent. I did not intentionally kill Vikram Singh. It was an accident and I deeply regret the incident.

Recorded by:
Presiding Officer

Signature of Accused
Commander Deepak Mishra

IN THE HON'BLE COURT OF SESSIONS, MORADABAD, (U.P.)

Sessions Trial No. 021 of 2026

State of U.P.

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad (U.P.)

FIR / Crime No. 019 of 2026

WRITTEN ARGUMENTS / SUBMISSIONS ON BEHALF OF THE PROSECUTION

Hon'ble Sir,

It is most respectfully sheweth as under:

1. ISSUE BEFORE THE COURT

Whether the accused Deepak Mishra is guilty of committing the offence of murder under Section 103 of the Bharatiya Nyaya Sanhita, 2023?

2. SUMMARY OF ARGUMENTS

It is humbly submitted that the accused has intentionally caused the death of the deceased Vikram Singh by deliberately procuring a firearm and shot him in his own bedroom. The defence of accident is baseless and unsupported by evidence. The prosecution has successfully established the guilt of the accused beyond any reasonable doubt by the evidence on record before this Hon'ble Court.

3. ARGUMENTS ADVANCED

I. THE ACT OF THE ACCUSED AMOUNTS TO MURDER UNDER SECTION 103 BNS

It is most respectfully submitted that the present case clearly satisfies all the essential ingredients of murder under Section 103 of the Bharatiya Nyaya Sanhita, 2023.

Firstly, there was a clear intention on the part of the accused. The accused, after learning about his wife's relationship with the deceased, did not act impulsively. Instead, he took calculated steps by procuring a firearm, loading it and travelling to the residence of the deceased.

Secondly, the act of firing a revolver at the chest of the deceased clearly demonstrates the intention to cause such bodily injury as is sufficient in the ordinary course of nature to cause death.

Thirdly, the act was done with the knowledge that firing a firearm at a person is so imminently dangerous that it would, in all probability, result in death.

Therefore, all ingredients of murder stand satisfied.

II. THE PROSECUTION HAS PROVED ITS CASE THROUGH RELIABLE EVIDENCE

It is submitted that the prosecution has successfully established its case through consistent and corroborative evidence.

The testimony of PW-1 establishes the motive and mental condition of the accused. The testimony of PW-2 (Investigating Officer) confirms the recovery of the weapon and the sequence of investigation.

The postmortem report clearly establishes that the cause of death was firearm injury.

The ballistic report conclusively proves that the bullet recovered from the body of the deceased was fired from the revolver belonging to the accused.

Thus, the chain of evidence is complete and points only towards the guilt of the accused.

III. THE DEFENCE OF ACCIDENT IS FALSE AND UNSUSTAINABLE

It is submitted that the defence has taken the plea of accident under Section 19 of the Bharatiya Nyaya Sanhita, 2023.

However, this plea is wholly inapplicable in the present case.

For an act to be considered accidental, there must be absence of intention, knowledge and preparation. In the present case, the accused had sufficient time for reflection and consciously took steps to procure a weapon and confront the deceased.

Further, no evidence has been led by the defence to substantiate the claim that the firearm discharged accidentally during a scuffle.

The plea of accident is merely an afterthought and is clearly contradicted by the facts on record.

4. CONCLUSION

In light of the above submissions, it is respectfully submitted that the prosecution has successfully proved the guilt of the accused beyond any reasonable doubt.

5. PRAYER

It is therefore most respectfully prayed that this Hon'ble Court may be pleased to:

Convict the accused Deepak Mishra under Section 103 of the Bharatiya Nyaya Sanhita, 2023.

Dated:

Counsel for the Prosecution

IN THE HON'BLE COURT OF SESSIONS, MORADABAD, (U.P.)

Sessions Trial No. 021 of 2026

State of U.P.

V/S

Commander Deepak Mishra

U/S: 103, BNS, 2023

P/S: Majhola, Moradabad (U.P.)

FIR / Crime No. 019 of 2026

WRITTEN ARGUMENTS / SUBMISSIONS ON BEHALF OF THE DEFENCE

Hon'ble Sir,

It is most respectfully sheweth as under:

1. ISSUE BEFORE THE COURT

Whether the accused Deepak Mishra is liable to be convicted for the offence of murder under Section 103 of the Bharatiya Nyaya Sanhita, 2023, or whether the facts of the case warrant acquittal?

2. SUMMARY OF ARGUMENTS

It is humbly submitted that the present case is not one of intentional murder but a tragic incident arising out of a sudden altercation. The prosecution has failed to prove intention beyond any reasonable doubt. The defence of accident is applicable.

3. ARGUMENTS ADVANCED

I. THE PROSECUTION HAS FAILED TO PROVE INTENTION BEYOND REASONABLE DOUBT

It is most respectfully submitted that the foundation of the offence of murder lies in the existence of intention or knowledge.

In the present case, there is no direct evidence to prove that the accused intended to cause the death of the deceased.

No eyewitness has been produced who has seen the actual act of firing. The testimonies of PW-4 (sister) and PW-5 (housekeeper) are based only on what they heard and not on what they actually saw.

The prosecution case is thus based on circumstantial evidence, which must form a complete and unbroken chain. However, in the present case, the chain is incomplete and leaves room for some reasonable doubt.

II. THE INCIDENT OCCURRED DUE TO AN ACCIDENT AND ATTRACTS SECTION 19 BNS

It is submitted that the facts of the case clearly indicate that the incident occurred during a sudden altercation between the accused and the deceased.

As stated in the statement of the accused and supported by surrounding circumstances, a scuffle took place during which the revolver accidentally discharged.

The defence of accident under Section 19 of the Bharatiya Nyaya Sanhita, 2023 applies where an act is done without criminal intention or knowledge in a lawful manner.

In the present case, there is no conclusive evidence to prove that the firing was intentional. Even the ballistic expert (PW-3) has admitted that she cannot determine whether the firing was intentional or accidental.

Thus, the possibility of accidental discharge cannot be ruled out.

III. THE CONDUCT OF THE ACCUSED SUPPORTS HIS BONAFIDES

It is submitted that the conduct of the accused is an important factor in determining his intention.

The accused did not attempt to flee from the scene and voluntarily surrendered before the police. He fully cooperated with the investigation.

The accused is a serving Naval Officer with no prior criminal antecedents, which further supports his good character.

Such conduct is inconsistent with that of a person who has committed a premeditated murder.

4. CONCLUSION

In light of the above submissions, it is respectfully submitted that the prosecution has failed to prove its case beyond reasonable doubt and the benefit of doubt must be given to the accused.

5. PRAYER

It is therefore most respectfully prayed that this Hon'ble Court may be pleased to:

Acquit the accused Deepak Mishra of all charges.

Dated:

Counsel for the Defence



FINAL MASTER SCRIPT (IMPROVISED)

MOOT COURT EXERCISE

GROUP-A (CRIMINAL)

LL.B. VI-SEM / SESSION: 2023-2026



In The Session Trial Matter of: State of U.P. v. Deepak Mishra (2026)

Moot Starts: COURT MASTER (Priyank)

Silence In Court!

NARRATOR OPENING (Sidhant)

- *I am Sidhant Narang, the Narrator for the present case.*
- *This Hon'ble Sessions Court of Moradabad is now in session.*
- *The matter before this Hon'ble Court is **State of U.P. v. Commander Deepak Mishra**.*
- *The accused is charged under **Section 103 of the Bharatiya Nyaya Sanhita, 2023**, for causing the death of **Mr. Vikram Singh** by firearm.*
- *The incident allegedly took place on **10th of January, 2026 at about 6:00 PM** at the residence of the deceased in Moradabad.*
- *It is alleged that after learning about his wife Kajal's illicit relationship with the deceased Mr. Vikram Singh, the accused Commander Deepak Mishra procured a revolver and shot the deceased.*
- *The prosecution alleges that this is a case of **intentional murder** whereas the defense claims that the incident occurred due to an **accident without any criminal intent**.*

...(Pause)...

The Prosecution & Defense may now introduce themselves to this Hon'ble Court.

PROSECUTION INTRODUCTION (Alshan)

May it please this Hon'ble Court, We appear for the State. I am Adv. Alshan Husain Shah and my Co-Counsel is Adv. Saba Khan

DEFENCE INTRODUCTION (Sachchan)

May it please this Hon'ble Court, We appear on behalf of the accused. I am Adv. Sachhan Chauhan with my Co-Counsel Adv. Drashti Chaudhary

NARRATOR (Sidhant)

The prosecution may begin their case.

PROSECUTION OPENING (Alshan)

Lordships! May it please this Hon'ble Court:

- That this is not a case of a sudden or accidental reaction. This is indeed a case of deliberate action.
- Your Lordship! The prosecution will establish, that after being informed about his wife's illicit relationship with the deceased, the accused did not act out of an accidental outburst. Instead, after confronting his wife, he went to his ship, he falsely procured a weapon your lordship, the firearm, prior to that he even gave a false justification to his superior at the naval headquarters that why he is procuring that weapon your lordship, after that he loaded it and then eventually he drove off all the way to the residence of the deceased in order to shoot him dead with that very revolver your lordship.
- Your Lordships! All these steps, all these events, they form a chain of preparation and they demonstrate a deliberate intention.
- The law is very clear Your Lordships! For an act to be considered accidental, there must be no time period for cooling-off. But the point here is to be noted Milord that the accused had an ample amount of time, for what? for reflection and even for the reconciliation of his thoughts.
- Your Lordship! Today, The prosecution shall prove, beyond any reasonable doubt, that the accused has committed a cold-blooded murder of the deceased.

That's all from my side your lordship. Much Obligated!

NARRATOR (Sidhant)

*Now, The Prosecution may proceed with its evidence and call its first witness **KAJAL MISHRA** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the Prosecution calls PW-1, Mrs. Kajal Mishra, to the witness box.

PW-1: KAJAL (Wife of Accused)

Chief By Prosecution (Saba): May I please proceed your lordship? Obligated.

Q1: Please state your name before this hon'ble court.

A: My name is Kajal.

Q2: Do you know the accused Commander Deepak Mishra?

A: Yes, he is my husband.

Q3: Did you disclose your relationship with the deceased Mr. Vikram Singh to your husband?

A: Yes. I did.

Q4: How did he react?

A: He was very upset about it.

Q5: Did he immediately leave to meet the deceased?

A: No. He did not leave immediately.

Q6: Do you know if he collected a revolver from his ship before meeting the deceased?

A: Yes, he took a revolver from his ship.

No further questions your lordship! Much Obligated.

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-1.

Cross by Defense (Drashti): May I please proceed your lordship? Obligated.

Q1: Mrs. Kajal, was your husband emotionally disturbed after hearing the truth?

A: Yes, he was deeply upset.

Q2: Would you say he was not in a stable mental state?

A: Yes.

Q3: Was he a devoted husband and father before this incident?

A: Yes. He was.

Q:4 Do you believe that as a spouse you broke his trust?

A: Yes. I did.

Q5: Did he ever show violent behaviour before this incident?

A: No. Never.

Q6: Did the deceased promise to marry you if you leave your husband?

A: He said that he loved me and wanted to be with me but he never clearly promised for marriage.

Point to be noted Milord! That the deceased Mr. Vikram Singh was morally not a good person. Much Obligated.

NARRATOR (Sidhant)

*Now the Prosecution may call its second witness **INVESTIGATING OFFICER** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the Prosecution calls PW-2, **INVESTIGATING OFFICER**, to the witness box.

PW-2: INVESTIGATING OFFICER (Avinash)

Chief by Prosecution (Alshan): May I please proceed your lordship? Obligated.

Q1: Could you please state your name and designation to this hon'ble court.

A: My name is Sub-Inspector Avinash and I am the Investigating Officer in this case.

Q2: What exactly did you find at the crime scene?

A: At the crime scene it was found that the deceased had bullet injuries and the accused's revolver was recovered.

Q3: When was the Postmortem of the deceased occurred?

A: The Postmortem of the deceased occurred on 11 January 2026.

Q4: What was the conclusion of the Postmortem report?

A: In the Postmortem report it was stated that the deceased died due to shock and haemorrhage resulting from firearm injuries to the chest, which caused severe damage to vital organs including the lungs and major blood vessels.

Q5: Was any sort of ballistic examination conducted?

A: Yes. It was conducted on 15 January 2026.

Q6: Could you please tell this hon'ble court what was the result of the ballistic examination?

A: In the examination, it was found that the bullets matched with the revolver of the accused.

Q7: Did the accused surrendered himself voluntarily?

A: Yes, he surrendered himself in the police station on the night of 10 January 2026.

No further questions your lordship. Much Obligated.

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-2.

Cross by Defense (Sachchan): May I please proceed your lordship? Obligated.

Q1: Could you please tell to the court that there were any eyewitnesses to the shooting?

A: No. Sir.

Q2: Did the accused attempt to flee?

A: No. He did not attempt to flee.

Q3: Is this correct to say that there was no one at the crime scene except the accused & the deceased?

A: Yes.

Q4: Have you found any other deadly weapon other than the revolver?

A: No

Q5: Did the accused cooperate with investigation?

A: Yes. He did.

Q6: Is this correct to say that you did not take the signature of Mrs. Kajal while recording her statement?

A: Yes, It is correct.

Your Lordships, From these points it can be concluded that the accused has cooperated with the investigation and complied with all the directions of the authorities and the police did not conduct the investigation with due diligence. Obligated!

NARRATOR (Sidhant)

*Now the Prosecution may call its third witness **BALLISTIC EXPERT** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the Prosecution calls PW-3, **BALLISTIC EXPERT**, to the witness box.

PW-3: BALLISTIC EXPERT (Dr. Anjum Malik)

Chief by Prosecution (Saba): May I please proceed your lordship? Obligated.

Q1: Please state your name and profession.

A: My name is Dr. Anjum and I am a forensic ballistic expert.

Q2: Did you examine the revolver recovered in this case?

A: Yes. I did.

Q3: What did your examination reveal?

A: The bullets recovered from the body of the deceased were fired from that revolver.

Q4: Was the revolver in working condition?

A: Yes. It was.

Q5: In your expert opinion, could the revolver cause fatal injury if fired?

A: Yes.

No further questions your lordship! Obligated!

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-3.

Cross by Defence (Drashti): May I please proceed your lordship? Obligated.

Q1: Dr. Anjum, you were not present at the scene of the incident, correct?

A: Yes.

Q2: Your opinion is based only on laboratory examination?

A: Yes.

Q3: You cannot say exactly how the weapon was fired, can you?

A: No.

Q4: You cannot say whether the firing was intentional or accidental?

A: No.

The point is to be noted your lordship that with the help of the forensic ballistic report we cannot confirm the actual act at the time of the commission of offence. Obligated!

NARRATOR (Sidhant)

*Now the prosecution may call its fourth witness **MAMTA SINGH** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the prosecution calls PW-4, **Ms. MAMTA SINGH**, to the witness box.

PW-4: MAMTA (Sister Of Deceased)

Chief by Prosecution (Alshan): May I please proceed your lordship? Obligated.

Q1: Please state your name before this Hon'ble Court.

A: My name is Mamta Singh.

Q2: What was your relation with the deceased Vikram Singh?

A: He was my brother.

Q3: Were you present at the house of the deceased on 10th of January 2026?

A: Yes.

Q4: Do you know that accused Deepak Mishra arrived at your brother's house that evening?

A: Yes, I know.

Q5: What did you observe in the house that evening?

A: I heard that there was an argument between my brother and the accused and after that I heard a few gunshots.

No further questions your lordship! Obligated.

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-4.

Cross by Defence (Sachchan): May I please proceed your lordship? Obligated.

Q1: Is this correct that you did not actually see the moment when the gun was fired?

A: Yes, I did not see the exact moment.

Q2: You were not inside the same room where the incident happened?

A: No. I was not there.

Q3: Therefore, you cannot say how exactly the revolver was fired?

A: No, I cannot say that.

Q4: You also cannot say whether the firing was accidental or intentional, correct?

A: Yes.

Q5: Your testimony is mainly based on what you heard and not what you directly saw?

A: Yes.

No further questions your lordship! Obligated.

NARRATOR (Sidhant)

Now the prosecution may call its fifth witness Mr. ABHISHEK for Chief Examination.

COURT MASTER (Priyank)

May it please the Court, the prosecution calls PW-5, Mr. ABHISHEK, to the witness box.

PW-5: ABHISHEK (Housekeeper)

Chief by Prosecution (Saba): May I please proceed your lordship? Obligated.

Q1: Please state your name and occupation before this Hon'ble Court.

A: My name is Abhishek and I worked as the housekeeper at Vikram Singh's residence.

Q2: Were you present at the house on the day of the incident?

A: Yes, I was present.

Q3: Did you see the accused Deepak Mishra coming to the house that evening?

A: Yes, I saw him entering the house.

Q4: Did you hear any conversation or argument between the accused and the deceased?

A: Yes, I heard them arguing loudly.

Q5: What happened shortly after that argument?

A: I heard a few loud gunshots from inside the bedroom of Mr. Vikram Singh.

No further questions your lordship! Obligated.

NARRATOR (Sidhant)

The Defence is now permitted to cross-examine PW-5

Cross by Defence (Drashti): May I please proceed your lordship? Obligated.

Q1: You were not present inside the room where the shooting took place, correct?

A: Yes. That is correct.

Q2: Therefore, you did not actually see the gun being fired?

A: No. I did not see that.

Q3: You only heard the sound of the gunshots?

A: Yes.

Q4: You cannot say exactly what happened between the accused and the deceased inside the room, can you?

A: No. I cannot say that.

Q5: You also cannot say whether the firing was accidental or deliberate, correct?

A: Yes. That is correct.

Q6: Could you please tell to this court that what was the reaction of the accused after you heard the gunshots?

A: He was in a state of shock.

No further questions your lordship! Obligated.

NARRATOR (Sidhant)

With this, the Prosecution concludes the examination of its witnesses and closes its evidence before this Hon'ble Court.

...(Pause)...

*Now, The Defence may proceed with its evidence and call its witness **COMMANDER SHAURYA** for Chief Examination.*

COURT MASTER (Priyank)

May it please the Court, the defense calls DW-1, **COMMANDER SHAURYA**, to the witness box.

DW-1: COMMANDER SHAURYA (Friend of Accused)

Chief by Defence (Sachchan): May I please proceed your lordship? Obligated.

Q1: Please state your name and profession before this Hon'ble Court.

A: My name is Commander Shaurya and I serve in the Indian Navy.

Q2: Do you know the accused Deepak Mishra?

A: Yes, he is my colleague and close friend.

Q3: Did the accused ever discuss his personal problems with you regarding his wife's relationship with the deceased?

A: Yes, he told me he was deeply disturbed after learning about it.

Q4: Did he tell you about his intentions before meeting the deceased?

A: Yes, he told me that he wanted to talk to the deceased about the future of his family and that he was even thinking about committing suicide.

No further questions your lordship! Obligated.

NARRATOR (Sidhant)

The Prosecution is now permitted to cross-examine DW-1

Cross by Prosecution (Alshan): May I please proceed your lordship? Obligated.

Q1: Is this correct that you were not present at the scene of the incident?

A: Yes. That is correct.

Q2: Whatever you know about the incident is only based on what the accused told you earlier?

A: Yes.

Q3: You cannot say what actually happened at the house of the deceased that evening, correct?

A: Yes. Correct.

Q4: Therefore, your testimony is only about the accused's mental state before the incident, correct?

A: Yes.

No further questions your lordship! Obligated.

NARRATOR (Sidhant)

With this, the Defense concludes the examination of its witness and closes its evidence before this Hon'ble Court.

...(Pause)...

Now, The Court proceeds to record the statement of the accused Commander Deepak Mishra under Section 351 of the of the Bharatiya Nagarik Suraksha Sanhita, 2023.

ACCUSED STATEMENT (Deepak)

- Milord, I had no intention to kill Vikram Singh.
- I was emotionally shattered after learning about my wife's relationship with him. I went to his house only to ask him about the future of my wife and my children.
- During the conversation, an argument started between us. The situation became tense and we both lost control of our emotions.
- During the scuffle, the revolver fell to the ground and both of us rushed towards it and in the course of a sudden fight, the weapon was **accidentally fired**.
- I deeply regret the unfortunate death of Vikram Singh, but I never intended to kill him.

NARRATOR (Sidhant)

Both parties may now proceed to conclude their final arguments before this Hon'ble Court

...PROSECUTION FINAL ARGUMENT IS ON NEXT PAGE...

PROSECUTION FINAL ARGUMENT (Alshan)

Your Lordship!

- The defence is somehow attempting to justify a very deliberate act into an accidental reaction.
- But the evidence tells a different story your lordships. The matter of fact that the accused had a lot of time for reflection and reconciliation of his thoughts is to be noted Milord. Firstly, He procures a weapon. Secondly, He loads it. Thirdly, He drove all the way off to the residence of the deceased and confronts him. And eventually he SHOT HIM DEAD with that very revolver your lordship.
- Your Lordship! By No stretch of imagination, one prudent man could even conclude that all of these instances would have been triggered accidentally without any criminal intent. Indeed, all these acts were very much deliberate, calculated and intentional.
- Your Lordships! The counsel would also like to draw the kind attention of this Hon'ble Court towards the fact that this present case clearly satisfies all the essential ingredients of murder under section 103 of The Bharatiya Nyaya Sanhita, 2023. Firstly, there was a clear intention to cause death. Secondly, there was an attempt to cause such bodily injury as was likely to cause death. Thirdly, the act was done with the knowledge that it was so imminently dangerous that it would, in all probabilities, cause death with no exemptions to it. And lastly and most importantly, the general exception of accident does not even stand a chance to be applied here in any way possible Your Lordship!
- Your Lordship, the defence of accident is nothing but a mere afterthought which is unsupported by evidence and it clearly contradicts the facts of this case on record.
- And with that our lordships, The prosecution today humbly prays for the conviction of the accused Commander Deepak Mishra under Section 103 of The Bharatiya Nyaya Sanhita, 2023 for committing a very heinous and brutal murder of Mr. Vikram Singh at his residence.

That's all Your Lordships. Much Obligated!

...DEFENCE FINAL ARGUMENT IS ON NEXT PAGE...

DEFENCE FINAL ARGUMENT (Sachchan)

Your Lordship!

- Nobody knows what exactly happened in the deceased bedroom and therefore the truth is hidden between the four walls.
- Your lordship! Are we fighting this case for commander Deepak Mishra? No Your lordship! We are fighting this case for a man who represents the honour of our country.
- Your Lordship! The accused had only gone to question the deceased regarding the future of his wife and children.
- But the deceased failed to provide a satisfactory response, which resulted in an argumentation.
- The argumentation unexpectedly escalated into a physical scuffle and during the struggle, the revolver fell to the ground. Both individuals rushed towards it and in the course of the fight, the weapon accidentally fired.
- Your Lordship! From these points it can be concluded that the incident was not intentional, but it was accidental.
- Therefore, The defence today humbly prays for the acquittal of the accused before this Hon'ble Court in the best interest of Justice.

That's all Your Lordships. Much Obligated!

... FURTHER NARRATION IS ON NEXT PAGE...

NARRATOR (Sidhant)

- *After carefully considering the evidence placed before this Hon'ble Court, the testimonies of the witnesses and the arguments advanced by the learned counsels for both sides, the Court proceeds to determine the guilt of the accused.*
- *The defence has attempted to establish that the incident was accidental in nature under Section 19 of the Bharatiya Nyaya Sanhita, 2023.*
- *However, upon examining the sequence of events, the conduct of the accused, and the surrounding circumstances, it is evident that the defence has failed to prove that the incident was accidental. Indeed, The act of procuring the weapon, travelling to the residence of the deceased and the manner in which the incident occurred clearly reflects intention and preparation.*
- *With that, The prosecution has established that the accused, Commander Deepak Mishra, after learning about the relationship between his wife and the deceased Vikram Singh, deliberately procured a revolver, travelled to the residence of the deceased and fired the weapon which resulted in the death of Vikram Singh.*
- *Accordingly, this Hon'ble Court finds that the prosecution has successfully proved the guilt of the accused beyond any reasonable doubt.*
- *Therefore, The accused Deepak Mishra is hereby **convicted for the offence of murder** under Section 103 of the Bharatiya Nyaya Sanhita, 2023.*

...(Pause)...

- *The matter is now posted for hearing on the question of sentence.*
- *Both the parties may now conclude their sentencing arguments before this Hon'ble Court.*

... BOTH SENTENCING ARGUMENTS ARE ON NEXT PAGE...

PROSECUTION SENTENCING ARGUMENT (Saba)

Your Lordships!

- Now that the guilt of the accused stands established, the prosecution submits that the present case falls within the category of the rarest of rare cases.
- Your Lordship, the accused deliberately procured a firearm, travelled to the residence of the deceased, and caused his death. This clearly reflects intention and preparation.
- The offence was committed inside the victim's own bedroom, making it a grave and disturbing act that shakes the conscience of the society.
- Such conduct deserves the highest degree of punishment, as it undermines the rule of law and public safety.
- Therefore, the prosecution most respectfully prays that this Hon'ble Court may be pleased to award capital punishment to the accused Commander Deepak Mishra.

That's all Your Lordship. Much obliged.

DEFENCE SENTENCING ARGUMENT (Drashti)

Your Lordships!

- It is very clear that Laws are made to serve Justice, not to just Punish .
- If every act arising out of emotional collapse is treated under the rarest of rare doctrines.
- Then the very purpose of legal exceptions (1) and (4) of Section 101 of BNS will stand defeated.
- Exception (1) and (4) to section 101 of BNS, 2023 recognize that a person provoked by grave and sudden provocation (exception 1) or acting under a temporary loss of self-control during a sudden fight (exception 4) is not entirely liable for his actions.
- Your Lordship, this case falls squarely within these exceptions and the prosecution reliance on Section 103 of BNS is misplaced, as the facts of the case points to a sudden quarrel and provocation by Vikram Singh's words, as the accused merely intended to question him regarding the future of his wife and children.
- It is very clear, your Lordship that the commander's action, though tragic, were a momentary lapse and not a premeditated act.
- Your Lordship, The accused does not seek sympathy, he seeks understanding.
- Not acquittal, but fairness.
- To punish him as a murderer it would be legally incorrect.
- To sentence him to death would be morally unjust.
- This is not the rarest of rare,
- This is the most human of cases.
- We humbly request this Hon'ble court to consider these exceptions and section 105 of BNS, 2023 Which deals with culpable homicide not amounting to murder.
- Your Lordship, a conviction under section 105 would be more appropriate, given the circumstances.

That's all Your Lordships! Much Obligated!

NARRATOR CLOSING (Sidhant)

- *The Hon'ble Court has heard the submissions of both the prosecution and the defence on the question of sentence.*
- *Considering the gravity of the offence, the circumstances of the case and the arguments advanced by both sides, this Hon'ble Court deems it appropriate to reserve its decision on the question of sentence.*
- *Accordingly, the matter is reserved for orders on sentence by this Hon'ble Sessions Court of Moradabad.*
- *The Court is now adjourned.*

Thank you!

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